

ASCII MASTER FLOW – PANEL 1/9: The central idea: constitute and restrain public power

ROOT QUESTION

What makes a political community governed by a Constitution rather than by rulers alone?

CONSTITUTION

- +-- creates institutions and offices
- +-- allocates horizontal and federal authority
- +-- identifies people, territory and political membership
- +-- protects rights and states public goals
- +-- provides amendment, conflict-resolution and continuity rules.

CONSTITUTIONALISM

limited power + rule of law + checks + rights + accountability + remedies.

MASTER DISTINCTION

constitutional document can exist without effective constitutionalism.

ASCII MASTER FLOW – PANEL 2/9: Classification without false binaries

FORM AXES

enacted/evolved | codified/uncodified | rigid/flexible | federal/unitary
| supreme/parliamentary | procedural/prescriptive.

INDIA

enacted + codified + supreme
mixed rigidity + federal division with centralising features
parliamentary responsibility + judicial review
procedure + transformative commitments.

TRAPS

written != rigid | uncodified != unwritten | federal != presidential
| parliamentary government != parliamentary sovereignty.

ANSWER STRIP

Classifications isolate dimensions; India is a designed synthesis across them.

ASCII MASTER FLOW – PANEL 3/9: Constituent power and constitutional change

CONSTITUENT POWER

people/founding authority -> creates constitutional order.

|
v

CONSTITUTED POWERS

Parliament | executive | judiciary | Union/States | constitutional bodies.

ARTICLE 368

change within Constitution -> procedure + federal ratification where required.

Kesavananda Bharati (1973)

amending power is wide but cannot destroy basic structure.

Minerva Mills (1980)

limited amendment and rights-DPSP harmony are part of constitutional identity.

LIMIT

no constituted organ becomes legally unlimited by invoking democracy or necessity.

ASCII MASTER FLOW – PANEL 4/9: Rule of law, limited government and legitimacy

POPULAR CONSENT

election and representation -> authority to govern.

v

RULE OF LAW

legal competence + non-arbitrariness + equality + reasoned procedure.

v

LIMITED GOVERNMENT

rights + separation/checks + federalism + responsible executive.

v

ACCOUNTABILITY

Parliament + audit + courts + elections + free public reason.

Maneka Gandhi (1978)

fair, just and reasonable procedure joins legality to substantive non-arbitrariness.

VERDICT

legitimacy requires source, process, rights and accountable performance.

ASCII MASTER FLOW – PANEL 5/9: Sovereignty, legal-political constitution and conventions

POPULAR SOVEREIGNTY

We, the People -> democratic authorship.

CONSTITUTIONAL SOVEREIGNTY

supreme Constitution -> every institution legally limited.

PARLIAMENT

democratically central, but not British-style legally sovereign.

LEGAL CONSTITUTION

text/rights/review/remedy.

POLITICAL CONSTITUTION

confidence/election/committee/federal bargaining/convention.

CONVENTION

politically obligatory practice; not automatically judicially enforceable law.

ASCII MASTER FLOW – PANEL 6/9: Morality, transformation and constitutional identity

CONSTITUTIONAL MORALITY

text + form + procedure + institutional role + equal citizenship.

TRANSFORMATIVE CONSTITUTIONALISM

dignity + equality + social justice -> lawful anti-hierarchy change.

S.R. Bommai (1994)

federalism and secularism constrain partisan central power.

Navtej Singh Johar v. Union of India (2018)

dignity, equality and constitutional morality protect minority citizenship.

LIMIT

morality/transformational language cannot float free of text, structure and competence.

ASCII MASTER FLOW – PANEL 7/9: Living constitution with interpretive discipline

TEXT/ORIGINAL MEANING

adopted language and history constrain.

STRUCTURE/PRECEDENT

relationships and doctrine maintain coherence.

LIVING APPLICATION

enduring principle -> new circumstance -> reasoned doctrinal bridge.

K.S. Puttaswamy (2017)

privacy and dignity apply constitutional liberty to technological conditions.

CONTROL QUESTIONS

textual hook? institutional competence? evidence? remedy? democratic space?

TRAP

living Constitution != amendment by judicial preference.

ASCII MASTER FLOW – PANEL 8/9: Identity, emergency and constitutional failure

INDIAN IDENTITY

Preamble + democracy + rights + federalism + responsibility
+ judicial review + social transformation.

FAILURE BRANCHES

emergency abuse | rights hollowing | captured institution
| convention breakdown | majority treated as unlimited.

RESPONSE LADDER

reasons/review -> Parliament/accountability -> federal checks
-> election/public reason -> lawful amendment and institutional repair.

SOCIAL REVOLUTION + RESTRAINT

transform hierarchy, but preserve competence, rights, procedure and plural consent.

LIMIT

constitutional survival is institutional practice, not text alone.

ASCII MASTER FLOW – PANEL 9/9: UPSC synthesis: higher law, democratic change and restraint

PRELIMS FIREWALL

constitution != constitutional law | constitution != constitutionalism
| convention != enforceable rule | written != rigid | federal != presidential
| Parliament != sovereign in British sense | basic structure != express list.

MAINS SPINE

definition/functions -> classifications -> constituent power
-> rule of law/legitimacy -> sovereignty/conventions
-> morality/transformation -> interpretation -> identity/failure.

PYQ SPINE

2021 morality | 2023 living instrument | 2025 independence-accountability.

VERDICT

India's Constitution enables democratic transformation by limiting every constituted power.